



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2229: appropriation; DHS; pregnancy resource centers

DIAZ FLOOR AMENDMENT

1. Modifies existing prohibitions on contracts and grants between state and local political entities and persons providing abortions by removing the distinction regarding nonfederally qualified abortions, which do not meet the requirements for federal reimbursement under Title XIX of the Social Security Act.
2. Prohibits contracts or grants between state and local political entities and persons providing referrals or facilitating access to abortion services funded with public monies.
3. Clarifies that these prohibitions apply to any state health or accident insurance plan.
4. Removes the definition of *nonfederally qualified abortion*.

ADDITIONAL COW
DIAZ FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2229
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 35-196.05, Arizona Revised Statutes, is
3 amended to read:

4 35-196.05. Public funding; family planning services;
5 contracting with certain facilities;
6 prohibition; enforcement; definitions

7 A. Subject to any applicable requirements of federal law,
8 regulations or guidelines, any appropriation, expenditure or grant of
9 public monies for family planning services by this state or any political
10 subdivision of this state shall be made in the following order of
11 priority:

12 1. To health care facilities that are owned or operated by this
13 state or any political subdivision of this state.

14 2. To hospitals and federally qualified health centers.

15 3. To rural health clinics.

16 4. To health care providers whose primary area of practice is the
17 provision of primary health services as enumerated in 42 United States
18 Code section 254b(b)(1).

19 B. This state or any political subdivision of this state may not
20 enter into a contract with or make a grant to any person that [DOES ANY OF
21 THE FOLLOWING:]

22 1. Performs [nonfederally qualified] abortions. [or]

23 2. Maintains or operates a facility where [nonfederally qualified]
24 abortions are performed [for the provision of family planning services].

1 [3. PROVIDES REFERRALS FOR, OR OTHERWISE FACILITATES ACCESS TO,
2 ABORTION SERVICES AS A COMPONENT OF FAMILY PLANNING PROGRAMS THAT ARE
3 FUNDED WITH PUBLIC MONIES.]

4 C. The attorney general or the county attorney may bring an action
5 in law or equity to enforce this section, and relief shall be made
6 available in appropriate circumstances, including recoupment and
7 declaratory and injunctive relief.

8 D. Any entity that is eligible ~~[for the receipt of]~~ [TO RECEIVE]
9 public monies has standing to bring any action that the attorney general
10 or the county attorney may bring pursuant to subsection C of this
11 section~~[-]~~ if the expenditure or grant of public monies has resulted in
12 the reduction of public monies available to that entity.

13 E. Any monies that are recouped under actions taken pursuant to
14 subsection C or D of this section shall revert to the fund from which the
15 monies were appropriated or granted. A prevailing plaintiff under
16 subsection C or D of this section shall be awarded reasonable attorney
17 fees and costs.

18 [F. SUBSECTION B OF THIS SECTION APPLIES TO ANY CONTRACT FOR STATE
19 EMPLOYEE HEALTH AND ACCIDENT INSURANCE PURSUANT TO SECTION 38-651.]

20 ~~[F.]~~ [G.] For the purposes of this section:

21 1. "Abortion" has the same meaning prescribed in section 36-2151.

22 2. "Federally qualified health center" means a health care provider
23 that is eligible for federal funding under 42 United States Code section
24 1396d~~[(1)]~~ [(1)](2)(B).

25 3. "Hospital" means a primary or tertiary care facility [THAT IS]
26 licensed pursuant to title 36, chapter 4, article 2.

27 ~~[4. "Nonfederally qualified abortion" means an abortion that does~~
28 ~~not meet the requirements for federal reimbursement under title XIX of the~~
29 ~~social security act.]~~

30 ~~[5.]~~ [4.] "Public monies" means state monies from whatever source,
31 monies of a political subdivision from whatever source and federal monies
32 provided under title X of the public health service act (42 United States
33 Code sections 300 through 300a-8) and titles V, XIX and XX of the social
34 security act.

35 ~~[6.]~~ [5.] "Rural health clinic" means a health care provider that
36 is eligible to receive federal funding under 42 United States Code section
37 1395x(aa)(2).>>

38 Sec. 2. Appropriation; department of health services;
39 pregnancy resource centers; eligible participating
40 organizations; use of monies; report

41 A. The sum of \$3,000,000 is appropriated from the state general
42 fund in fiscal year 2026-2027 to the department of health services for the
43 support of pregnancy resource centers.

44 B. The monies appropriated by subsection A of this section shall be
45 distributed to eligible participating organizations that:

- 1 1. Must meet the following criteria:
- 2 (a) Be a nonprofit organization that has operated in this state for
- 3 the previous three years and that employs at least five full-time
- 4 employees.
- 5 (b) Provide medical services that aid women in maintaining a
- 6 pregnancy or that provide post-abortion, post-miscarriage or post-birth
- 7 care.
- 8 (c) Provide to at least five patients per month any of the
- 9 following pregnancy-related services:
- 10 (i) Pregnancy tests.
- 11 (ii) Sexually transmitted infection testing.
- 12 (iii) Counseling for pregnant women by a licensed counselor,
- 13 psychologist, psychiatrist or other similarly licensed professional.
- 14 (iv) Ultrasound services.
- 15 2. May not be any of the following:
- 16 (a) A hospital.
- 17 (b) Affiliated with, partnered with or work with any person or
- 18 entity, including an abortion clinic as defined in section 36-449.01,
- 19 Arizona Revised Statutes, that performs, induces, provides, refers for or
- 20 assists with abortion services or abortion related services.
- 21 3. Does not perform, induce, provide referrals for or assist with
- 22 abortions.
- 23 C. Monies distributed to an eligible participating organization
- 24 pursuant to subsection B of this section must be used only in this state
- 25 but may not be used to compensate any officer or director of the eligible
- 26 participating organization.
- 27 D. The monies appropriated by subsection A of this section may not
- 28 be distributed to:
- 29 1. An abortion clinic as defined in section 36-449.01, Arizona
- 30 Revised Statutes.
- 31 2. A pregnancy resource center that refers patients to a clinic
- 32 that or doctor who provides an abortion.
- 33 E. On or before December 31, 2027, each eligible participating
- 34 organization that received monies pursuant to subsection B of this section
- 35 shall submit a report to the department of health services on all of the
- 36 following information regarding women who received services pursuant to
- 37 subsection B, paragraph 1, subdivision (c) of this section:
- 38 1. The total number of patients served.
- 39 2. The total number of services performed each month.
- 40 3. The total number of services performed per service.
- 41 4. The total number of women who received a service and who gave
- 42 birth.
- 43 5. The total number of women who received a service and who gave
- 44 birth and subsequently placed the child for adoption.

1 6. The total number of client satisfaction surveys completed, if
2 any.

3 Enroll and engross to conform

4 Amend title to conform

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